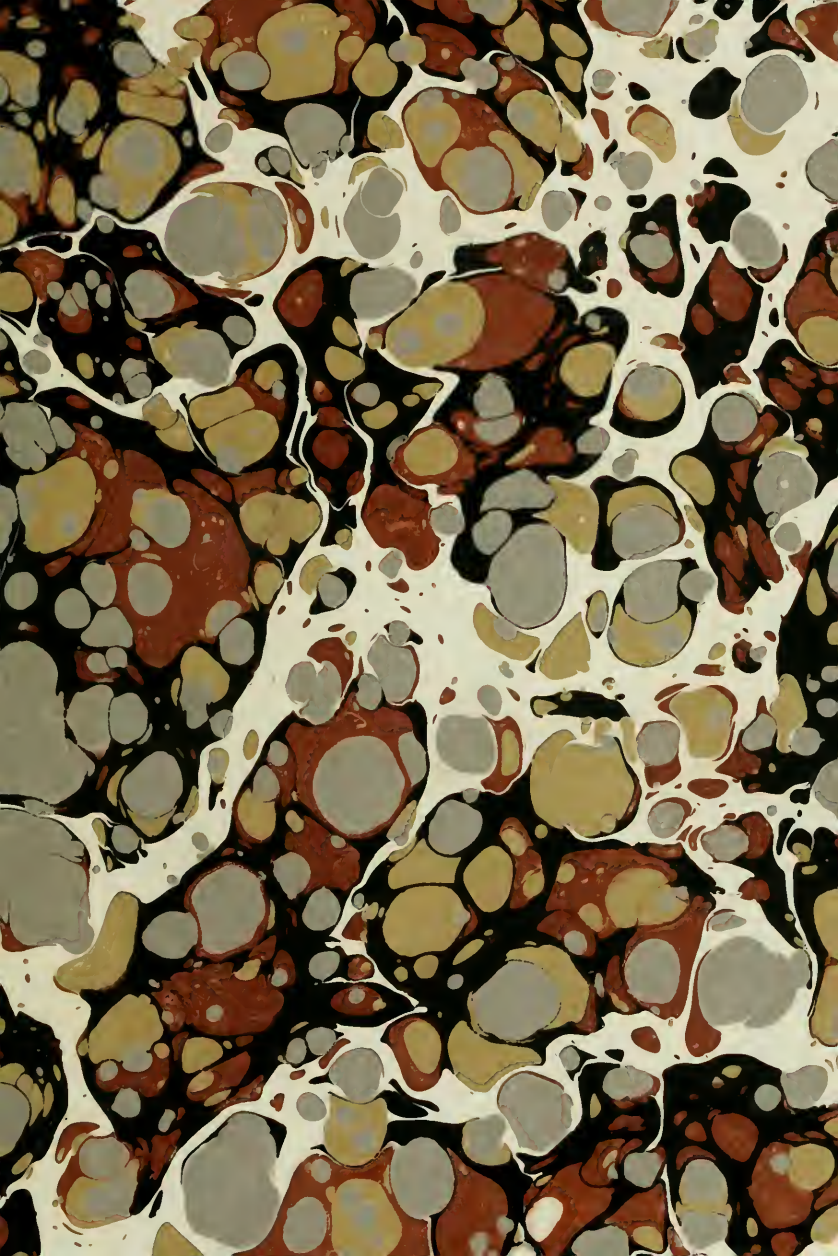


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THE

SAILORS ADVOCATE.

FIRST PRINTED IN 1727-8.

TO WHICH IS NOW PREFIXED,

SOME STRICTURES,

Drawn from the STATUTES and RECORDS, relating to the pretended Right of

TAKING AWAY MEN BY FORCE,

UNDER THE NAME OF

PRESSING SEAMEN.

THE SEVENTH EDITION.

LONDON:

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INTRODUCTION

BY THE

EDITOR

OF THE

SEVENTH EDITION.

STATESMEN from the moſt antient times have had a kind of *itching* Palm: to quiet which, and to fill their purſes, they continually filch from the people under the pretence of *loyalty* and *zeal* for the Service of the Crown, uſing " *the Tyrant's Plea*, " —NECESSITY *."

This *Thing* of Preſſing is a good Milch Cow to the Admiralty. Protections, Paſſports, Exemptions, Accompts and Charges of Preſs Gangs without checque, &c. &c. are perquiſites, which mount higher than thoſe of the Chancellor, Chief Juſtices, and Judges put altogether.

* Milton.

The Revolution remedied the evil, but the Admiralty thought it too ſweet a morſel to be parted with, and have continually been *nibbling* to get at it again; but the Courts of Law, and the People of England, being always aware of them, like *Cats* have watched the *mice*, and every now and then *have given a Gripe* to the Admiralty Court. Some of the Admiralty have been ſmartly puniſhed for exceeding their powers, but ſtill the *Mouſe* had a mind to the *Cheeſe*; and in the Year 1727, Sir Charles Wager, by the advice of *Jacome* and *Gibſon* (two money Scrivenors and buyers of Sailors Tickets) ſtrove to knaw a hole that he might once more get at the ſweet morſel. But the Spirit of the Conſtitution was, at that time, ſo high in Parliament, that the Promoters of Admiralty Powers durſt not publicly ſet their faces againſt *the Laws* and *Rights* of the Kingdom; and therefore, that they might ſteal a confeſſion of their abſurd method of kidknapping the Men and the Caſh of the Kingdom under the name of PRESSING, they intended to deceive and ſurprize the King and Parliament by "*the fair flatter-*" *ing*" * *Pretence* of manning the Navy in an open and generous manner.

The

* The *like Deceit* procured the wicked Act of 11 Hen. VII. c. 3. ſo juſtly condemned by the great Sir Edward Coke, whoſe deſcription of it is *equally* applicable to the *Admiralty Bill* above mentioned.—It—"*had a fair flattering* "*preamble*,

The King, in his ſpeech of that year, nobly recommended to the Houſe of Commons to conſider the method of manning the Navy by *Encouragement*, in order to prevent all complaints of Grievances: but the *Admiralty* drew up a Bill, which pointed at the very contrary! It was to *oppreſs* the Subject;—and this they thought to obtain by making an expreſs diſtinction in the Bill between *Volunteers* and *preſſed Men*, hoping that a Court of Law by ſeeing the Words *Preſſed Men* mentioned in the Act, would from thence draw an inference that ſuch a thing as *preſſing* was recognized by Parliament to exiſt in law.

With this View a Bill was moved for, drawn by the Admiralty Clerks, brought in, Read twice, and committed; when the Deſign appeared ſo bare-faced that it raiſed a general oppoſition, and the Miniſter "*who* "*had not ſeen Pharſalia*," and had not, therefore, loſt all ſhame, bluſhed at the abſurdity of his Admiralty-Friends.

Beſides which, the Oppoſition of Sir Joſeph Jekyll, Serjeant Pingelly, Mr. Lutwyche, Mr. Shippen, Mr. Arthur Onſlow, then Speaker (as alſo ſome Perſons even now alive) the Landed Gentlemen, Sir James Lowther, the Cities of London and Briſtol, and the

"*preamble, pretending to avoid divers miſchiefs*," &c.—— But "*the Purview of that Act tended in the execution contrary* "*ex diametro*."—4 Inſt. p. 40.

Out Ports, gathered ſuch ſtrength, that in ſpite of the Court they threw out the mention of *Preſſed Men* in every part of the Bill. In the Debates it was diſcovered that the Admiralty had miſapplied the money appropriated for paying Seamen, and had left a debt *upon the Head of Wages*, which, by obliging them to give Tickets inſtead of Caſh, ſo much diſtreſſed the Seamen, that it was manifeſtly one of the cauſes which prevented them from inliſting into the Service.

Out of this Oppreſſion the Ticket Buyers made their great perquiſite. To remedy which, the Oppoſition pointed out that the Charge of the Navy was divided into Heads of Payment, one of which was *Wages*; they therefore gave £ 500,000 to clear that *Head of Wages*, and thereby *to prevent for ever* the pretence of not paying the *Wages* when they became due.

Wages are the motive upon which Freemen give their ſervice: but if men are forced to ſerve without their own conſent, they are *Slaves* and not Freemen. By this proceeding it plainly appeared to be *the ſenſe of Parliament* that PRESSING is not only *illegal*, but that the true method of raiſing Men was to provide and pay them Sums equal to the Value of their Service.

During the agitation of this Queſtion many Petitions came to Parliament ſetting

forth the Grievances of *Preſſing*; and the annexed Tract, THE SAILORS ADVOCATE, was then printed, having been compoſed by ſome of the moſt reſpectable Members in the Oppoſition, of whom we are happy to ſay ſome yet ſurvive, and ſtill maintain the ſame public Spirit.

This little Tract is now republiſhed to keep up in the people of the preſent age the Knowledge and Spirit of their Predeceſſors. Many Years after the Correction of the abovementioned Bill, Sir Charles Wager, who could not leave off *nibbling*, ſerved up once more the former Abſurdities, like chewed meat in a French Ragout; for in the Year 1741 he brought in another Bill, under the Title indeed of "An Act for the "*Encouragement and Increaſe of Seamen*;" but the "PURVIEW," as before, "*tended* "*in the execution contrary ex diametro*," viz. to authorize all the Abſurdities of *Preſſing*. The Houſe, after many Debates, threw out every word that expreſſed any Idea of countenancing *Preſſing*; and thoſe Debates are wonderfully curious and of great Authority, on account of the very eminent characters at that time in the Houſe who were engaged in the examination of this Queſtion.

The preſent Editor has ſubjoined to this little preface the Titles and Preambles of the two Acts which were the occaſion of the following Eſſay, called THE SAILORS ADVOCATE,

CATE, and alſo references to ſome other Statutes relating to this ſubject, in order to ſhew that the *Admiralty Court* hath no power of *Acting* within the Realm, and much leſs of ſelling *Protections*, (levying money without conſent of Parliament) and of ſeizing the Perſons of Men *without* a legal *proceſs* in a Court of Record, according to the *common Law of England.*

As for the *Admiralty Court*, it is not (in its ordinary Proceſs) a Court of *Engliſh Law*, but acts upon corrupt *Traditions* and Tyrannical Maxims growing out of the Lees of the Roman Tyranny, being a mere Farago of Prerogative, which is ſo juſtly expoſed by the excellent Forteſcue *.

This Court however hath not, as yet, been *completely* conſigned to the deſerved fate of the Court of the Lord Preſident of Wales, and of the Court and Council of the Lord Preſident of the North, of the Star Chamber, Council Table, &c. &c. all which, upon full examination, were taken away as inſufferable grievances.

* See his valuable Tract "*de laudibus Legum Angliæ.*"

The

The First Publication of THE SAILORS ADVOCATE was occasioned by the Debates on the Two following Acts of Parliament:

Anno primo Georgii II. Regis, c. 14.

An Act for Encouraging Seamen to enter into His Majesty's Service.

WHEREAS nothing will more effectually contribute to the promoting and advancing the Naval Strength of this Kingdom, than the endeavouring by DUE AND FITTING ENCOURAGEMENTS *to invite Mariners and Seamen to enter willingly into the Service of their Country, as often as Occasion shall require; and whereas His Majesty, out of His Princely Concern for the Increase and Encouragement of His Seamen, hath been most graciously pleased to recommend the same from the Throne, as a Consideration of* THE GREATEST IMPORTANCE; *be it therefore enacted*, &c. In the enacting part, however, the Admiralty Interest would have added a power *of pressing*, in full contradiction to the declared intentions of his Majesty in the preamble, which the Spirit of the House would not bear, but rejected the *Pressing* Clauses with Disdain, and left only what was innocent in the Bill, as the Act now remains. And if the same crafty Adm—lty Interest hath deceived any subsequent Parliaments, by procuring captious expressions to be inserted in any

any other Acts whereby the general Rights of the Kingdom may be affected by *innuendo*, the COMMON LAW will certainly reſcue the Subject from any ſuch ſnares; and JUDGES and JURIES will underſtand the Acts of Parliament in a Juſt and *legal* ſenſe to redreſs the injured.

Anno primo Georgii II. Regis, c. ix.

An Act for granting an Aid to His Majeſty of *Five hundred thouſand Pounds*, towards diſcharging Wages due to Seamen, and for the *conſtant*, *regular*, and *punctual* Payment of Seamens Wages FOR THE FUTURE; &c.

MOST Gracious Sovereign; *Whereas ſeveral juſt and neceſſary Meaſures were, upon account of the late perplexed and diſturbed Situation of Affairs in Europe, entered into and concerted between Your Majeſty's late Royal Father, of Glorious Memory, and Your good Allies*; *and in order to preſerve and reſtore the Peace of Europe, and to ſecure the Trade, Navigation, and other valuable Rights and Poſſeſſions of theſe Kingdoms, great Fleets were employed abroad in divers remote Parts, whereby a great Arrear or Debt has been contracted for the Service of the Navy, and particularly* ON THE HEAD OF SEAMENS WAGES; *and Your Majeſty having now, by the Bleſſing of God on Your*

Your Care and C[illegible] G[illegible],
ſo far obtained [illegible],
as that there is [illegible]
ſo great a [illegible]
Service; and [illegible]
Arrears of Wages is judged adviſeable, not only as it will ſave and prevent a further great Expence, but alſo as it will render a regular, conſtant, *and* punctual payment of Seamens Wages *more practicable and eaſy* for the future; *which will be an Encouragement to able and experienced Seamen,* AT ALL TIMES HEREAFTER, *to enter themſelves voluntarily into Your Majeſty's Service, when occaſions ſhall require the ſame; and Your Majeſty's moſt loyal and dutiful Subjects, the Commons of Great Britain in Parliament aſſembled, having taken Your Majeſty's moſt gracious Recommendation from the Throne into their moſt ſerious Conſideration, have for theſe purpoſes freely and* UNANIMOUSLY *given and granted to Your Majeſty the Sum of* Five hundred thouſand Pounds, *to be raiſed in manner herein after mentioned,* &c. *And to the End, Intent, and Purpoſe, that as well all Arrears of Seamens Wages, as their growing Wages, may be* CONSTANTLY, REGULARLY, *and punctually paid, be it enacted by the Authority aforeſaid, That not only as to ſuch Monies as have been granted in this Seſſion of Parliament for the Service of the Navy, but alſo as to ſuch Supplies as ſhall be* HEREAFTER GRANTED IN PAR-

LIAMENT FOR THOSE SERVICES, *ſuch Parts or Proportions thereof as ſhall be* ON THE HEAD OF SEAMENS WAGES, *ſhall from time to time be iſſued and applied for thoſe Services* conſtantly, regularly, *and* punctually, *in manner following*, &c.

It is well worth while for a true honeſt hearted Engliſhman in the Houſe of Commons to enquire, whether this ſolemn enacted Appropriation of public Money has been "*conſtantly*" applied according to the enacted purpoſes; if not, it may have occaſioned the backwardneſs of Seamen to enliſt: and it is to be hoped that no ſuch obſtacle could have been thrown in the way with deſign to furniſh the ſtale pretence of NECESSITY, in order to obtain their *favourite morſel.*

THE

Sailors Advocate.

THE Welfare of THESE NATIONS undoubtedly depends upon their being powerful at Sea, for whilſt they are Maſters there, they are ſecure from Foreign invaſions, and may carry the produce of their induſtry to all parts of the World: it is the Royal Navy and Trade of BRITAIN which makes it a powerful and envied State. Were either of theſe loſt, we ſhould be as deſpicable Slaves as ſome of our Neighbours; yet by oppreſſing thoſe by whom our Liberties are preſerved, and our Riches encreaſed, we take effectual methods to deſtroy both. Our Trade and Power are ſo linked, that they muſt ſtand or fall together. Suppoſe us once inferior in Force to any Nation which rivals us, and our Trade is gone. Suppoſe our Trade loſt, and there is an end of our Force; for Money is the ſupport of the Navy, and Trade the ſource of Riches. It is the Wealth acquired by means of our Trade, that makes us, at leaſt, equal to our Neighbours, to whom we are inferior both

as to the extent of our Dominions, and the fertility of our Soil.

The advantage of Trade. The Funds depend upon it.

The Intereſt of the **Funds**, which makes us ſuperior to the reſt of Europe, is paid out of the Duties ariſing from **Trade**; and if thoſe Duties ſhould decreaſe, it is needleſs to mention the effects which it muſt have upon the **Funds**. By Trade, Lands are made more valuable; by Trade the King's Revenues are paid; and to Trade it is owing that this ISLAND, which with difficulty could, in the Time of RICHARD I. pay 100,000 marks *, now raiſes yearly above five millions of pounds Sterling. Every diſcouragement therefore given to Trade prejudices the **King's Revenues**, the **landed Intereſt**, the **Funds**, and conſequently the whole Nation. Yet not only Trade, but Liberty alſo is in danger of being ſubverted, by a cuſtom which is ſupported under pretence of neceſſity.

Preſſing prejudicial to Liberty, and Trade, and contrary to Law.

This cuſtom is the **preſſing of Seamen**, a proceeding authorized by nothing but forced Conſtructions of laws, or Unwarrantable violence. The *Magna Charta* ſays, **that no freeman may be taken or impriſoned, or be diſſeized of his freehold or li-**

* For to raiſe 100,000 marks only, in the time of *Richard* I. was impoſed upon every Knight's fee twenty ſhillings, the fourth part of all Laymen's revenues, and the fourth part of all the revenues of the Clergy, with a tenth of their Goods. Daniel's Hiſt. p. 121.

berties,

berties, or his free cuſtoms, or be outlawed or exiled, or in any manner deſtroyed, but by the lawful judgment of his Peers, or by the law of the Land. This is confirmed by the Petition of right *. And † the Courts at Weſtminſter-hall have, in the caſe of Preſſing, explained this ſo ſtrongly, that the killing an Officer or Sailor, in this manner ſtriving to uſurp the liberties of mankind, is by them only deemed Manſlaughter. As it ſeems ſurprizing how ſo open an Evaſion of the Laws ſhould eſcape with impunity, it may not be amiſs to give a ſhort account of it.

The original of Preſſing.

The Kings of England formerly contracted with the Captains to furniſh Bands of men for the Sea-ſervice at a certain price: theſe Officers, when they could not get Men by other means, prevailed upon them by drinking, &c. as Land-Officers raiſe Recruits; and when this failed, they forced on board, under pretence of drunken broils, or their having received ‡ *Preſt money*, ſuch fellows as none thought fit to claim. But though at firſt this happened only to the worſt of men, it was afterwards carried ſo far that it became a complaint in Parliament. Some Officers were puniſhed, and the Admiralty iſſued out orders not to preſs any Freeholders, imagining

* 16 C. 1. † 5 El. 795. 48.

‡ Preſt is an old French Word, ſignifying ready, and this Money was given as earneſt.

that under that name would be comprehended all such as were able to prosecute the pressing Officers, and that the rest would be forced to submit, because they could not bear the expence of a suit. Thus is pressing carried on with impunity: and the man who is poor has no remedy. The Admiralty, it is said, upon these occasions have defrayed the charge of the Suit of the pressing Officer, and, if cast, to have paid the fine for him *.

Destructive of Liberty, and of the Royal Navy itself, by abateing the courage of the Sailors.

This abuse which has crept in by degrees is at last come to such an height that it calls aloud for remedy; since it is not only an injury to the Liberty of the Subject, but tends to the destruction of the Government itself. It ruins Trade for the present, and by its consequences must destroy the Royal Navy, for whose support it is pretended to be designed. It is a maxim generally allowed, that Free nations make the best Soldiers; when Liberty leaves them, Courage soon follows. Oppression certainly debases the mind, and what can be a greater Oppression than forcing Men as prisoners on board a Man of war without necessaries, without allowing them time to order their affairs, or to take leave of their families. How can it be expected that a man should fight for the Liberty of others, whilst he himself feels the pangs of Slavery, or expose his Life to defend the property of a Nation, where his dearest pledges,

* See Appendix.

his

his Wife and Children, are pining away with want.

Pressing lessens the number of Sailors.

Pressing and hard Usage not only abates the courage, but lessens the number of the Sailors. How easy it is for them to remove from one country to another, is self evident; nor need it be proved by the example of the Dutch, whose Fleets are above half manned by Foreigners; and the wealth of Holland is founded on the ill treatment of the Flemings by the Spaniards; for, to avoid Slavery, they chose rather to live free in Unwholesome marshes, than be oppressed in the Fruitful plains of Flanders.

Forces them into Foreign service, and induces them to turn Pirates.

That the Common sailor is not insensible of hardships, is proved by the numbers who have left their native country, and now help to man the Russian Fleets and Spanish Privateers. The Ostend ships were navigated by British sailors, and all countries are benefited by Englishmen who have been banished by this unhappy practice. Besides, too many of them have turned Pirates, which has put the Government to great expences to protect Trade, against those whom we have thus made enemies to all mankind.

Causes mortality on board the Squadrons.

But there is a third and much more terrible manner in which the sailors of England are lessened by pressing; for the dreadful mortality that has of late raged in our Squadrons, and helped to disappoint the schemes laid for the

the peace of Europe, in ſome meaſure proceeded from the miſeries which the men endured on board the guard-ſhips; where many hundreds being confined together without neceſſaries, occaſioned ſuch a ſtench as gave riſe to many diſtempers, of which ſeveral died immediately; but in others of ſtronger conſtitutions the diſtemper lurked, till the heat of the climate into which they went, gave ſuch a ferment to their blood, as brought out the diſtempers which they had contracted by this ill uſage in England; and they ſoon became contagious. Beſides which, the men not being permitted to go on ſhore to provide neceſſaries, can with difficulty keep themſelves clean; and the want of change of cloathing is often itſelf the cauſe of infection; and this has been ſo manifeſt in the Weſt Indies, that two or three thouſand men are ſaid to have been loſt on board that Squadron; for when ſhips are once infected, the bringing freſh men into them is but encreaſing the mortality. Tradeſmen and others not uſed to the Sea, being preſt on board Ships of war, are ſo far from being ſerviceable to the King, that they are a detriment in general to the intended expedition; but particularly becauſe their eating ſalt proviſions often corrupts the blood, and hurries them into ſuch a ſickneſs as ſpreads a contagion through a whole Fleet. This was the caſe of Admiral Wager's Squadron, fitted out in great haſte two years ago for the Baltick, as well as that in the Weſt Indies ſince.

It

It is not the Timber nor the Iron of the Ships of War which gives the Dominion of the Seas; but the Sailors who man them, that are the ſtrength of the NATION; it is their ſkill and courage on which the ſafety of the Ships themſelves depend; and ſhould they be deſtroyed by diſtempers occaſioned by ill uſage, want of care, &c. or be frighted into Foreign ſervice, what then muſt become of the Royal Navy is too evident. That this may be the caſe is not impoſſible, ſince Sailors grow every day more and more ſcarce, which is manifeſted from the difficulty of manning the Squadrons, and from the Merchants being obliged to augment their wages. The more Sailors periſh, and the more hardſhips they endure, the ſcarcer will they be, and the greater will be the difficulty of manning the Navy: and where this will end is not fit for me to ſay; but Sailors cannot eaſily be made, nor can we keep the Dominion of the Seas without them.

When a Squadron is to be manned, the Merchant ſhips are forced to lie idle in their ports, their men are taken away when ready to ſail, their periſhable cargoe ſpoiled, whilſt Foreigners ſupply the markets abroad; which is a damage to Trade more conſiderable than any but Merchants can be ſenſible of. Thus the Service of the Navy is made a pretence for deſtroying the very means by which Navigation itſelf ſubſiſts. *Preſſing very prejudicial to the Merchants.*

Hardſhips of the perſons preſſed.

THE ENGLISH, under a long ſucceſſion of Monarchs, boaſt a native liberty, and are born with many privileges which no other kingdom enjoys; neither their bodies nor purſes are at their Kings arbitrary diſpoſal; no law is or ought to be paſt without their own conſent. How comes it then that ſo very uſeful a part of his Majeſty's ſubjects as the **Sailors** are, ſhould be preſt into the Service, denied their liberty, and turned to ſlaves? For **Slavery** is nothing but **ſervice** by **force.** The **preſt perſon** is aſſaulted and ſeized on the King's highway, and hurried into a floating priſon, without being allowed time to ſpeak or write to his friends. The **Crew** forces him along, as Bailiffs do thoſe who reſiſt upon being arreſted for debt, often inſulting them, and knocking them down before they ſeize them: ſometimes if the unhappy man has money to give, the Gang will let him go*; but if he has not, he is infallibly put on board the ſmack, which is a veſſel fitted up like a priſon, with iron grates and bolts. A poor fellow, who perhaps hath ſix or ſeven children, and makes hard ſhifts to bring them up, by labouring in lighters, fiſhing-boats, or plying as a waterman, and is not willing to leave his family to go a long voyage, is the firſt who

* See the Appendix.

is

is thus laid hold of; while the single man, who is fittest for the Sea, can leave his place of abode, and hide himself till the **press Warrants** are called in, or else go into Foreign service; and oftentimes the father of a hopeful family is hurried into a King's ship or press-smack, and his children immediately left without subsistence to seek charity; thus many become **shoe-cleaners** and **vagabonds**, instead of being bred up **Sailors**. I myself saw a **waterman's wife**, with five clean children about her, crying at the **Admiralty office** for her husband then hurried aboard the **Baltick Fleet**; but it being the case of so many in the **Mediterranean** and **West India Squadrons**, it was in vain for her alone to expect relief. And it is very melancholy to consider what great numbers of **women and children** have been brought to beggary, and left destitute, especially of late, by the mortality that has reigned in some of our **Squadrons**.

This so discourages the generality of our men, that they study to breed up their children to any Trade or manner of living, rather than they should go to Sea; so that none but the worst sort of men will, by this means, be left to serve in the **Royal Navy**, and to them **the floating Bulwarks of England** must be intrusted, if we continue this method to man our **Fleet**. No wonder then if our breed of **Seamen** grow worse and worse, since **slavery** will make the calling itself contemptible.

The present manner and charge of preſſing.

The expences of manning the Fleet by preſſing amounts to a very large ſum: it is commonly reckoned, at a medium, to be fifty ſhillings or three pounds per head; though the charge of keeping the Ships till they are manned, muſt certainly make it more than double that ſum, to ſay nothing of the hindrance to the ſervice. But what is ſtill worſe, this method of preſſing ſets up numbers of little Tyrants in all our Sea-ports, and even ſo near the Royal court as in the city of London; where you ſhall ſee droves of theſe lawleſs fellows, armed with great ſticks, force ſuch as they think proper into the ſervice, and knock down any who will not ſubmit to appear before their magiſtrate, who is ſometimes a Lieutenant, but oftner an Officer of the loweſt rank, in an Alehouſe at Wapping, or St. Catherine's, a Midſhipman, a Boatſwain's mate, or ſome ſuch like Judge of Liberty and Property: This mighty lawgiver, according to his will and pleaſure, ſends the innocent priſoner aboard a preſs Smack, to lie in bulk, or the hold of the veſſel, till he is ordered on board a Man of war, unleſs diſcharged as uſeleſs by the aforeſaid Marine miniſter, or the Regulating captain appointed to view them in London, if the man has time to appeal there; but in all the Out-ports, the poor captive has none to appeal to but the Officer who preſſes him, nor

any

any hopes of liberty, unleſs an order from the Admiralty ſets him free, which generally comes ſo late that the poor man is ſailed, and his family left a charge to the Pariſh. Perhaps the reader may be better pleaſed with an account of this from a ſufferer, in his own words, which I happened to hear on board a Preſs-ſmack on the Thames. A poor fellow juſt turned into the hold, looking up to the iron Grates over him, paſſionately broke out in theſe terms: *** "I am in a Dungeon! what have I done "to be dragged from my wife and children "in this manner? why was I ſhut in here! "I that am born to be free; are not I and "the greateſt Duke in England equally free "born? if I have done nothing, who has "power to confine me? where is the liberty of "an Engliſhman? or why is not my Lord "Mayor here as well as I?"

When a man is taken out of a homeward bound veſſel, if he has any ſmall private adventure, ſuch as Tea, Wine, Rum, &c. it is generally ſacrificed to the Gang that ſearches the Ship; but it is too often the practice, firſt to take what the poor creatures have thus brought home, as the only fruits of their labour and hardſhips, and then acquaint ſome other preſs-gang in the River, who come aboard, and take away the very ſame men, and hurry them immediately out to Sea again, attended with all theſe diſtreſſes of mind and body.

The desperate condition of prest men.

From this barbarous treatment of our People arises this observation, that in all Foreign ports where our Ships of war arrive, they have so many of these discontented wretches aboard, that, rather than live under such hardships, or venture to return home, many have chosen to swim ashore at all hazards, though they have often failed in the attempt, and afterwards been seen dead, floating on the water. What a reproach is this to our Nation? thus to force Seamen to take all opportunities to enter into Foreign service, and to work and fight for Nations who do not pretend to Liberty, and whom we justly scorn for living under the oppressions of Arbitrary Government.

Pressing an hardship upon the Officers employed in it; makes them liable to prosecutions, &c.

Pressing is not an oppression to the private Sailor only, but high injustice to the Officers themselves; for even the chief Officers, who sign the warrants for pressing, are laid under great difficulties, since it makes them liable to a prosecution, for doing what is necessarily required by their Office. On the one hand, they are bound to obey orders; and on the other, it is criminal by the Laws of the Land to confine any man, without crimes first alledged against him upon oath; though those Laws have not, in this case, been executed for many Years,

Years, yet is their force not leſſened: And is it not an exceeding great hardſhip, for a conſiderable Officer to be eternally liable to a proſecution, whenever he hath enemies of power and malice ſufficient to take advantage of it? 'Tis vain to imagine that cuſtom can be any defence, ſince the higheſt officer of the Law was, within theſe few years, puniſhed for violating a Statute ſcarcely ever read or known, and which had been look'd upon as ſo obſolete, that three ſucceſſive Chancellors had publickly ſold the Maſters places, which plainly ſhewed, that they imagined that law to be no longer in force; yet this was not allowed as any plea in his defence; but in anſwer to his pleading the practice of his predeceſſors, and their not being puniſhed, nor even blamed for it, the reply was: *That a blot was no blot until it was hit; and that though murder had been frequently practiſed, yet that did not make murder lawful, and that the more frequently the crime was committed, the greater neceſſity was there for puniſhing it.* Thoſe Gentlemen therefore muſt needs be in an uneaſy ſituation, who are liable to a **Parliamentary** proſecution for doing their duty. But if this is the caſe of the **chief Officers** of the **Admiralty**, how much worſe is that of the **Lieutenants**, though they are ſometimes Gentlemen of the beſt families in England, yet are they forced to do the duty of Bailiffs on ſhoar, and Gaolers on board; to ſit ſmoaking in ſpunging-houſes,

houſes, to be obliged to ſcour the ſtreets, to herd with ruffians, and, which is worſe to a compaſſionate man, to be the **Inſtruments of oppreſſion**, and to tear away unhappy men from their wives and families. It may be of dangerous conſequences for **Officers** to be accuſtomed to obey **Orders** abſolutely contrary to the **Laws** of the **Land**: If in obedience to the former they ſhould kill any unhappy wretch, what a load muſt that man's blood be upon their conſciences; beſides which, they muſt ſtand trial for it, and, by the **Law**, murder is death, and it is doubtful whether there can be a pardon where there is an appeal for blood. On the other ſide, if they ſhould meet with reſiſtance, and loſe their lives, what an unfortunate end is it to be killed in a mob, or amongſt drunkards in a midnight broil: And the man who, in his own defence, kills any of the **preſs-gang**, is acquitted by Law.

Reaſons given for preſſing.

But notwithſtanding all theſe diſadvantages, which the Service, the Trade of the Nation, and Particular men labour under from the practice of **preſſing**, one general anſwer ſerves, viz. that the **Navy** cannot be manned without it, and that if men will not liſt voluntarily, they muſt be preſſed. Suppoſing this be true, and that it is not want of **Sailors**, but want of inclination to ſerve, that makes the ſcarcity of men; it will be highly neceſſary to remove

move the reaſons of their unwillingneſs, to enter. If it proceeds from forcing men to ſtay an unlimited time in the Service, and from keeping them all that time like priſoners; from their being paid their wages in ſuch a manner, as often reduces it above two thirds in its value; from the treatment which they receive after they are come on board, they being frequently ſent from one extreme of climate to another, as from the Baltick to the Weſt Indies, without any regard to the Health of the men, the time they have already ſerved, or their merit in ſervice; to ſay nothing of their treatment by ſome Inferior Officers, who are ſuffered to uſe them more like dogs than men. If theſe are the reaſons from whence their unwillingneſs to ſerve ariſes, the cauſes being removed, the effects will ceaſe: And that ſome of theſe are the cauſes, we hope, is already demonſtrated; nor can it be expected that any men will go on board a Man of war, where they are treated with ſeverity, whilſt they can have larger pay on board a Merchant ſhip, from whoſe ſervice they are diſcharged, and readily paid off, at the end of the voyage.

Sailors receive not above one third of their pay.

The pay on board a Man of war, clear of all deductions, is but 22 *s.* 6 *d.* per month; but out of this moſt of them do

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not actually receive above one third part. For not being allowed time to provide themſelves with neceſſaries at home, *viz.* bedding, cloaths, &c. they are forced to take them up at extravagant prices, though they might provide themſelves with them at much cheaper rates; but that they cannot do, ſince they muſt not go on ſhoar, leſt they ſhould deſert.

Whilſt their pay is thus ſquandered at Sea; their poor wives and families on ſhoar muſt take up their food and other neceſſaries at the utmoſt extortion, and be likewiſe obliged to thoſe who ſupply them at 50 *l.* per cent. diſcount, on ſo precarious a ſecurity as a Sailor's wages on board a Man of war; for, if he dies the purſer is the firſt creditor, and if he runs away, no other is paid. But ſuppoſing a man out-lives the voyage, and after being ſeveral times turned over from West-India to Baltick voyages, comes home, and a ticket given him for payment; the creditors who furniſhed his family with ſubſiſtence during his abſence, fall upon him, perhaps arreſt him, and force him to ſell or deliver up his ticket at twenty or thirty per cent. loſs; or at leaſt not knowing when he ſhall receive his money, he diſpoſes of his ticket at ſix or ſeven ſhillings in the pound diſcount to thoſe perſons, who employ people in all the Ports for this abominable purpoſe.

Can it then be expected that the love of glory, and the prospect of wooden legs and Greenwich Hospital, should make poor men prefer the King's pay, which is seldom 10 *s.* per month clear, to 30 or 40 *s.* in the Merchant's service.

The best remedies for pressing to be learned from experience.

The grievances of pressing, already set forth, will probably be sufficient to convince every man that they ought to be remedied; but the difficulty is, how to bring it about, and yet to be able to man the Navy. The fault is easily found, but it requires the utmost skill to prescribe a remedy. No particular scheme or project is here laid down, but only the different methods that are used in other Countries to man their ships, that from proceedings approved by experience better remedies may be collected than from the crude notions of speculative men.

The Venetian method of manning their Navy.

To begin with the VENETIANS, who were once masters of the Mediterranean, they, upon the loss of the Indian trade, when a way round the Cape of Good Hope to the East Indies was discovered by the Portugueze, found their number of Sailors diminish, and that volunteers sufficient to man their Navy did not list; upon which they fell into a method of forcing men aboard; and this, together with their

making Noble Venetians commanders, without considering their qualifications, lost them their power at sea, and reduced their Fleets to the wretched condition which they are now in.

The French method. In FRANCE, though it is an arbitrary Government, there is no pressing, but all Sailors, Watermen, &c. upon the sea-coast, are enrolled (by an Officer called the *Commissary of the Classes*) from the age of 16 to 60, that they may be ready upon any occasion for the King's service: so that when any Ships are to be fitted out, an order is put up at every parish church about 14 days before, by which the men are required to repair to the Commissary in every respective district appointed for that purpose. Out of the whole, the Commissary chuses a certain number, to each of whom he gives a printed passport, in which is inserted their names and place of abode, and the Port to which they are to repair in a certain limited time; allowing Conduit-money to enable them to perform their journey, at the rate of one penny per mile. When they come to the place appointed, they make their appearance before the Commissary of the Navy, who distributes them on board their respective ships, the Clerk entering down their names. Their Wages begin from the day on which they come aboard, and eight days before the Ship sails, they, and the whole Ship's

company

company, including the Officers, receive two months advance pay to buy them neceſſaries: and when a Ship returns into their own harbours, they are paid the reſt that is due to them; and if the Ship is laid up, a Commiſſary of the Navy, of which there is one in every Port, though they are paid their wages, gives them conduct-money, and a paſſport, in order to return home.

No Sailor that is entered in theſe Claſſes can be arreſted for debt, and if any deſire leave to go into the Merchants ſervice, the Commiſſary ſeldom refuſes them a certificate, if they are not required on duty; but then the Maſter of ſuch Merchant-ſhip, when he returns from his voyage, is to be accountable for every ſuch man. It is ſaid, that there are above thirty thouſand men thus enrolled in France for the King's Ships, who may not be inliſted for Land ſervice.

The Dutch method.

The Dutch, in the greateſt extremity, never yet had recourſe to preſſing; but their method for manning their Ships is, firſt to beat up for volunteers, as we do, and ſometimes they offer a ſmall bounty of about ſix or ſeven Guilders a man; but generally they give a month's pay in advance and no bounty, allowing the men about three Guilders, that is, about five ſhillings Engliſh a week, whilſt they ſtay on ſhore; for which their Landlords, or other

friends are ſecurity, that they may not deſert before they go on board; and in order to make the Service begin more agreeable to them, the Ship is completely fitted for the Sea with all her proviſions and ſtores on board, by the Officers, Sailors, Labourers, &c. kept for that ſervice in the places whence the Ships are fitted out; ſo that the whole Crew goes on board at once on the beat of a Drum, that gives notice when the Ship is ready to receive them.

But if ſeveral Ships are to be fitted out at the ſame time, and this encouragement is not ſufficient to raiſe Men ſoon enough, they encreaſe their bounty, or advance two months pay in hand; and if that don't ſucceed, they lay an embargo upon all Merchant-ſhips; and as their men are never entered into pay, or ſubſiſted during an embargo, they are forced to go into the STATES ſervice for a maintenance; by which means it was ſcarce ever known to laſt above a month or ſix weeks, in which time the Men of war have been always well manned; and there has not been above two embargoes ſince the year 1672, in which year only the STATES being hard preſt with a heavy War, they were forced to lay an embargo, and to raiſe the Seamens wages to fifteen Guilders per month.

The readineſs of Sailors to enter into the DUTCH SERVICE does not proceed from their pay being better than ours, ſince it is ſeldom more than eleven Guilders a month, which

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is not so much as twenty shillings English, out of which there is a deduction for the Surgeon. But the reason of their willingness to enter is, their treatment from their **Officers**, and their being sure of a discharge at their return home: for when a Ship comes into Port, to end her voyage, their **Admiralty** immediately either visits the Ship, or sends a deputation on board to enquire into the manner of the **Sailors** being treated by the **Captains** and **Officers**, particularly in respect to the **victualling**, which the Captain undertakes, at the rate of eight or nine pence per day a man; and if it appears that they have been oppressed, or defrauded of their provisions, the Captain is at least mulcted of his pay, and often rendered incapable of serving the STATES; after this, in three or four days they are paid off, and though there is a necessity for sending the Ship out again immediately, the men are not compelled to serve against their inclinations; but very often, upon liking their Captain, &c. the whole Ship's company enter again. If any man hath received a wound, or is otherwise hurt in the STATES SERVICE, he is allowed a bounty in proportion to his misfortune, but no yearly pension is given. And instead of taking advantage of the necessities of the men, during the voyage, by the Purser's or Sutler's selling of what they may want, at exorbitant prices, they are supplied with some Money by the Captain, or his Clerk, for necessaries when

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in Foreign countries; and the mens wives, or thoſe with whom they leave a power of Attorney, receive at home one month's pay in every three or four months, after the Ship has been ſix or eight months from Holland.

The Swediſh method.

In SWEDEN, there are generally enrolled upon the eſtabliſhment upwards of 8000 Seamen, the inferior Officers, as Mates, Boatſwains, Gunners, &c. being included; they are divided along the Sea-coaſt in ſeveral diſtricts, where they have cottages and lands aſſigned them, for the ſupport of them and their children. They are muſtered by the Officers, and have very complete and uniform cloathing given them every year, almoſt like the Watermen in the river of Thames. When their ſervice is required, orders are ſent to their reſpective pariſhes to declare from the pulpit, that the King's ſervice requires their appearance upon ſuch a day, at a certain place, where proper Officers attend, who, at the King's charge, carry them to the Port where the Ships are, and there the inſpector makes choice of thoſe that are to ſerve, if they are not all wanted at that time, and diſtributes them to their reſpective Ships, and from that time their pay begins. They have ſeveral conſiderable privileges, and among others, that of not being arreſted for any debt whatſoever.

When the Ships are fitted, ſome days before they are ready to ſail, all the Company, from the

the Captain to the Cabin-boy, receive two months pay, and returning from a voyage, though continued in the ſervice, they receive what remains due to them; and whenever they are going abroad, they are again paid two months pay, in order to provide themſelves neceſſaries, though the voyage is often very ſhort.

Every reſpective diſtrict meets once a month, and ſometimes oftener, at which meeting the neareſt Officers muſter them, and ſend the muſter-roll to the High-admiral that he may know if their number is always complete; and at the ſame time they are exerciſed with Fire-arms.

In time of peace an order is publiſhed, giving leave to any of the King's Seamen to ſail in the Merchants ſervice, and they who have a mind to go, declare it to the ſuperior Officer of each reſpective Diſtrict, who gives them a licence. Theſe Seamen, who ſhipping themſelves in this manner on board Merchant Ships to gain experience, are generally firſt preferred in the King's ſervice, and more eſteemed by the Merchants than others, becauſe they are liable to be ſeverely puniſhed, and turned out of the King's ſervice upon any juſt complaint made againſt them by the Maſter of theſe Ships during their voyage, which makes them behave better than other Seamen.

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Every Maſter who ſhips theſe Seamen, is obliged to appear with them before the chief Magiſtrate of the Town where they are enrolled; their names, age, and places of abode, as well as a deſcription of their Perſons, are alſo regiſtered, the Maſter being accountable for the appearance of theſe men at his return, or to give a good account what is become of them; for which purpoſe he has a certificate given him of all the qualifications of the men entered by him, which he muſt produce at his return to port, or he cannot be cleared; and he is obliged to victual and treat them well in the voyage.

If the King has at any time occaſion for a greater number of Sailors than is enrolled, they beat up for volunteers, and each volunteer receives a month or two months pay for bounty-money. The Seamen in their Navy are under a very good diſcipline and regulation; Divine worſhip is ſtrictly kept up every day aboard all the King's Ships at Sea, and no ſwearing heard, or beating allowed by the Inferior officers a-board them; thoſe are preferred and encouraged moſt that merit beſt, and not often, if ever, by favour without it; and when the Father of a Family is killed in the ſervice, a certain Fund is allotted for the maintenance of their Wives and Children, until they can provide for themſelves.

The hardſhips of preſſing have, in ſome meaſure, been repreſented, as alſo the methods made uſe of in other Countries to raiſe men for the Sea-ſervice without it. Theſe Papers were intended to have been more complete; but as the Parliament are now ſitting, it was thought neceſſary to hurry theſe ſheets to the Preſs, before there was an opportunity of getting ſuch information as was requiſite for drawing up any thing complete upon this ſubject. What is now done, is only to induce others to communicate their thoughts to the Public, or, if they pleaſe, to ſend them to the Publiſher of this Paper, they ſhall be faithfully inſerted in the next as they ſhall direct, the Author being ready to aſſiſt any that ſhall contribute towards the remedying this abuſe; for if the Public can be ſerved, it is indifferent to him who are the Inſtruments.

APPENDIX.

NUMBER I.

A Letter from one who was bred in the Land-ſervice, concerning a method for the more eaſy manning of the Navy.

SIR,

IT is a work of the greateſt difficulty to form a practicable ſcheme, by which preſſing may be prevented, and the ſervice not prejudiced.

The great CECIL, Queen Elizabeth's favourite Miniſter, uſed to ſay, that the remedies for abuſes were to be ſought out of the laws and cuſtoms of our anceſtors; by that means they will be of a piece with the conſtitution. Suppoſing we were to follow his advice on this occaſion, we ſhould look back to ſee how the former Kings of England manned their Navy. I find that, till Henry the VIIIth's time, the King retained Captains, with whom he covenanted by indenture to furniſh him with a band, conſiſting of a certain fixed number of

men, which the Captains were to raiſe and recruit at their own expence; and that this was the method of the Sea, as well as the Land-ſervice, appears by what follows:

7 Hen. VII. Be it therefore ordained by the authority of this preſent Parliament, that if any Captain be retained, or hereafter ſhall be to ſerve the King on the Sea, or beyond the Sea, in feat of War, which hath not his or their whole and perfect number of Men and Soldiers, according as he ſhall be retained with the King, or give not them their full wages, without ſhortning, as he ſhall receive of the King for them, except for Jackets, for them that receive Land wages, that is to ſay, 6s. 8d. for a yoeman, and 13s. 4d. for a gentleman, for a whole year, he ſhall for ſuch default forfeit to the King all his goods and chattels, and their bodies to priſon.

And if any Soldier, being no Captain immediately retained with the King, which hereafter ſhall be in wages and retained, or take any PREST to ſerve the King upon the Seas, or upon the Land beyond the Sea, depart out of the King's ſervice without

without licence of his Captain, that such departing be taken, deemed, and adjudged felony.

3 Hen. VIII. Provided always, That no Captain be charged by this act for lack of his number retained, as is abovesaid, whose Soldiers shall happen to die, or otherwise depart, not in the default of the Captain; so that the said Captain, if he be at Land wages, shew the departing, or lacking of the said Soldier unto the King's Lieutenant there, and to the Treasurer of the wars: Or, if the Captain be at the Sea wages, if he shew the departing, or lacking of the Soldier so lacking, to the Admiral of the Navy where he is retained, at the next meeting with the said Admiral.

Those who are employed in the Navy may, perhaps, in these Clauses find the desired remedy. Supposing when a Ship is put into commission, that the Admiralty should agree with the Captain to man her at a certain price, say 3 l. a head; I name that sum, because, by calculation, every prest man stands the Government in that sum at least. It is not

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to be preſumed, that a Captain would refuſe a Ship, rather than take upon him the trouble of manning her: for his own reputation he would take care to provide good men, ſince both his character and ſafety would depend upon their behaviour: beſides, he would not be the leſs careful of the Sailors, when it would be for his advantage to preſerve them. This method could not be called a hardſhip upon the Captains, ſince, if they pleaſed to be a little induſtrious they might be gainers, by getting men at a cheaper rate than what the Government would allow them. We have ſeen inſtances in every Squadron, that ſome Officers have had their Ships over-manned in a few days. In the Land-ſervice, the Captains raiſe and recruit their Companies without levy-money, and are at great expence to procure tall proper men, yet do not they complain, but pride themſelves in the beauty and completeneſs of their Corps, becauſe, by that means, they ſhew their zeal to the ſervice. And doubtleſs the Sea-Officers have as much zeal for his Majeſty, and much better abilities of ſhewing it, ſince their profits are larger.

This would take away at once almoſt all the complaints of the Common Sailors, ſince, by making it the Captain's intereſt to preſerve his men, you make him their protector. At

Land,

Land, the Officer viſits the ſick, and is as careful of his Soldiers as if they were his children; for the loſs of a man is the loſs of as much money as a Recruit would coſt; and perhaps the Sea-Captain's good nature would not be decreaſed by its being his intereſt to take care of his Men.

The Seamens great complaint of their being turned over might probably be remedied by this method; ſince, if the Admiralty gave notice to a Captain to have a complete Crew, there would be no need of turning over from any Ship newly come in. It may be objected, that it would be an expence to the Government to pay levy-money to every Ship put into commiſſion; but that, I believe, can have little force, ſince it is not to be ſuppoſed that the Parliament would ſcruple a ſmall additional expence to preſerve the Sailors, who are the Sinews of England, which ſo cheerfully hath come into much larger expences for rebuilding, ſo ſumptuouſly, the public Offices and Admiralty in London, the yards of Deptford, &c.

Another complaint of the Sailors is, the Diſcount of their Tickets, and the great Uſury at which their families are obliged to take up neceſſaries. This might be remedied by giving the Sailor a power to leave a letter of Attorney with his wife, to receive ſome part of his wages as he went on in ſervice. By this means their Wives would become Preſs-maſters,

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for whenever they wanted money they would be for ſending their huſbands to ſea.

Theſe are my firſt thoughts on a ſubject of which I am very far from being maſter; and I hope you will either amend or excuſe the errors I have committed, ſince good nature will rather look at my intentions than at my performance, and conſider, that I have neither had time to finiſh what I deſigned, nor acceſs to ſuch papers as were neceſſary for that purpoſe. I am,

SIR,

Your very humble Servant.

NUMBER II.

An account of the uſage of preſt men a-board Guard-ſhips.

THE two laſt ſummers that we have been expecting a War, Guard-ſhips were kept at the Nore to receive the preſt men from London and the River of Thames, who were a-board in Yachts and Smacks, in the manner as I ſhall inſtance: one of them was called the Royal-Tranſport, a Veſſel of about forty tons burthen; her hold was ſecured with ſtrong iron bars, and gratings on the hatches and deck, with only a ſmall

place left open, guarded with centinels, who let down the Preſt men, one at a time, through a narrow ſcuttle or trap-door, ſo that no gaol could be more wretched; and they were not ſuffered to ſtir out, or ſo much as to take breath, till they got to the Guard-ſhip; which ſometimes were ſeveral days together crouded ſo cloſe with men that they could not lie down, nor ſcarce have room to ſit on the bottom or ſide of the Veſſel, which made them ſo hot, dirty, and faint, that there were often ſeveral of them ſick, and ſome expiring, before they got to the Nore. And what was ſtill more diſcouraging, they found ſeldom leſs on board the Guard-ſhip than ſix, ſeven, or eight hundred at a time in the ſame condition that they were in, without common conveniencies, being all forced to lie between decks, confined as before, and to eat what they could get, having ſeldom victuals enough dreſſed, which occaſioned diſtempers, that ſometimes ſix, eight, and ten, died of a day; and ſome were drowned in attempting their eſcape by ſwimming from the Guard-ſhip, many of whoſe bodies were ſeen floating upon the River, and one of them was drove into a Creek at Chelſea. The reſt that ſurvived were parcelled out, to be divided to each Ship that was ready to receive them, where they carried the ſickneſs, that ſpread itſelf ſo as to infect our Squadrons before they ſailed on their expedition.

NUMBER III.

A Letter from a Dutch Trader.

SIR,

IN the year 1725, a Sloop in which I had ſome concern, returned with Paſſengers and Goods from Holland; the men knowing that there was preſſing in the River, would run into Margate-Road, ſo that the Maſter was forced there to hire old diſabled men that were paſt being preſt, who, with the help of two Cuſtom-houſe Waiters put on board, with much difficulty got into the River. When they came to the Nore, they met a Man of War's boat with a Lieutenant, who, coming on board with his Crew, would bring the Veſſel to an Anchor, with all her ſails out. The Maſter, in vain, urged the danger of it; but he commanded as if on board a prize, bringing her under the Man of War's ſtern; afterwards, the Maſter deſiring him to walk down into the cabin, the Lieutenant being there, grew merry, began to quarrel with the Paſſengers, and threatened to preſs them; but one of them, Mr. P——, being as ſturdy as himſelf, he let him alone, and only preſt two of the other Paſſengers, who were gentlemen, and one of them, ſoon after, a Commiſſion-officer. This being done, he viewed the ſhip's company, and found it to conſiſt of old and lame men, hired at Margate, which

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put him in a great fury, ſo that a Cuſtom-houſe boat coming on board at the ſame time, he would have preſt them. But his wrath being ſomewhat over, he reſolved to return on board, with two gentlemen-paſſengers whom he had preſſed; but he had loſt all his crew, for they had got between decks, where, having drank all the liquor they could find, they hid themſelves, hoping to eſcape, for they alſo ſerved againſt their wills on board the Man of War. Upon this the Lieutenant, in great indignation, called out to the ſhip for help, or he ſhould be run away withal, though there was not a man that ſtirred to get up the Anchor; upon which another boat came on board; and whilſt the other Officer, being a Midſhipman, was talking with the Maſter of the Veſſel, his crew rummaging alſo between decks, got drunk; but at laſt they got them up upon the deck, and the maſter deſiring the officer of the Man of War to take care that none of theſe men carried any thing out of the veſſel; they replied, He might look to it himſelf, for their men were all honeſt; upon which he deſired the Cuſtom-houſe Waiter to have an eye to them, which he did, and one of them found a man carrying a pound of Tea, and took it from him. The maſter complained to the Lieutenant, and he promiſed to puniſh the man, but immediately preſſed the waiter who had diſcovered him; and after keeping the veſſel five hours in great confuſion and

danger, left her, carrying away two gentlemen paſſengers and this waiter, to help mann a King's Ship, who narrowly eſcaped being drowned in one of the boats. This ſhews the abuſe of preſſing, and it was no great recommendation of our Country to the Foreigners who were in the veſſel, to ſee men uſed in this manner like ſlaves, where liberty is ſo much talked of.

P. S. There was linen, and many neceſſaries in the mens cabins, all loſt, to the value of above fifty pounds; and in many veſſels much more is plundered under pretence of preſſing.

NUMBER IV.

An Inſtance of the Hardſhips of Preſſing in a Letter from One of the People called Quakers.

IN the year 1718, as well as my memory will ſerve (for I have no minutes of the caſe by me, although I was in ſome meaſure concerned in it) the Philip and Mary, burthen 300 tons or thereabouts, William Haſlam, Maſter, was coming from Norway laden with Mats, Deal, and Timber, and ſailing up the Swin near Harwich having a freſh gale at N. E. and a flood tide a little above the Sohoc-beacon, was met by a Pinnace belonging to the *** Man of War that was then riding by the

the Buoy of the Mouſe. The ſaid Pinnace having come along ſide of the Philip and Mary, there being a Lieutenant in her and about 16 men, the men from the ſaid ſhip flung the Pinnace a cope to make faſt, and the ſide manned by Philip and Mary's men, and an entering cope put into the hands of the ſaid Lieutenant, and he helped in with much reſpect, after whom the reſt of the Crew entered, except a man or two who ſtaid in the Pinnace; ſoon after the Crew got on board the ſaid ſhip, ſhe ſailing at a very great rate, the Lieutenant gave command to let go the anchor, that they might not be carried paſt the *** Man of War; but the Mate of the Philip and Mary anſwered, and ſaid, It was not proper to let go the anchor when the ſhip was under ſail, and ſo freſh under way, for if the anchor took hold, it was enough to part the cable, or tear the ſhip's bow out; however, the ſaid Coxton being forward enough to obey the Lieutenant's command, called the reſt of the Crew forward to let go the anchor; he was anſwered by the Mate of the ſhip (whom I ſhall have occaſion to mention hereafter) Were they madmen? what, did they mean to ruin the ſhip? and ſo went to hinder them. Upon which the Coxton ordered the Pinnace's Crew to draw their cutlaſſes, which they did accordingly, and the men on board the Philip and Mary took up hand-ſpikes in their own defence, and a ſkuffle or fray aroſe, in which the

the Philip and Mary's men had the better on't. The Lieutenant ſtruck one of the men belonging to the Philip and Mary over his head with his cane, that had an ill effect; but the Lieutenant ſeeing that he had not force enough to impreſs theſe hand-ſpike-men, gave orders to the Pinnace's crew to go on board the Man of War for more, which accordingly they did; and as they were ſtepping into the Pinnace, the Coxton ſaid, D——n the dogs, we will be revenged on them; and I doubt not would have done his endeavour to have accompliſhed it, had he not in the ſkuffle received a wound on his head, ſuppoſed by his own Cutlaſs being preſt by the hand-ſpike, ſo that it proved fatal to him. The Lieutenant keeping as it were the poſſeſſion of the Philip and Mary all the time the Pinnace was returning to the Man of War, which when got on board, nine of the men belonging to the Philip and Mary took their own boat, being apprehenſive that if the Pinnace brought more forces, ſome of them would be in danger of loſing their lives; ſo away they go, making for the Eſſex ſhore, the Pinnace following them, filled with armed men, but they got on ſhore before the Pinnace. The Man of War ſeeing that the Philip and Mary was got ſeveral miles above her, ſlipt her cable, and makes all the ſail that ſhe could to come up with her. And coming up with the ſaid Merchant-ſhip, the ſaid Captain fires a Gun with ſhot and all,

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and ran up ſo near that he called to them to let go their anchors, or elſe he threatened to fire a broadſide into her and ſink her. Now the Man of War and the Merchant-ſhip being along ſide one of another, the Captain of the former calls to his Lieutenant to bring the Maſter on board the Man of War (what to do there, we ſhall hear anon) the Lieutenant anſwered, that the Maſter would not come; at which the Captain called to his Lieutenant, Skin the dog (meaning the Maſter of the Philip and Mary) ſkin him alive: ſo that being terrified between Captain and Lieutenant he conſented to go, and had never a boat to go in but his long-boat, and ſhe upon deck; the Lieutenant commanding the ſaid Maſter and Mate to hoiſt out this heavy boat, which they did with much ado, after a great deal of labour and toil, and the Maſter and Mate rowed themſelves and the Lieutenant on board the Man of War: the ſaid Maſter coming upon the quarter deck firſt, and being a peaceable quiet man, and one of the people called Quakers, the firſt ſalutation he met with from the Captain was, How dare you, you quaking dog, come before a Commiſſion Officer with your Hat on? then he ordered ſome of his men to pull off his Hat, who pulled his Wig off alſo, the Captain with his left hand taking hold of the Maſter's right ear, and with his right fiſt clinched, ſaid, I know you won't ſtrike, no more will I; but with his fiſt clinched, punched him till his

eyes were almoſt out of his head. The Captain being quite tired with punching, after ſome reſpite, took hold of both the poor Maſter's ears, and ſaid, He would ſhew him Tower-hill play; ſo holding him faſt with his hands by his ears, flung his head in his face ſo often, that the poor Maſter was uſed in a moſt barbarous manner, being beat and abuſed much worſe than by an avowed enemy, though he had not been active in the leaſt on board his own ſhip, ſave when the Lieutenant, as I hinted before, gave one of his men ſuch a blow over his head with his cane, by which blow the poor man lingered about three weeks and died.

But after he had given the blow, he was about drawing his ſword, which the Maſter ſeeing, prevented it by going behind him, and holding back the Lieutenant's arms, ſaying, He was afraid there was like to be miſchief enough without his drawing his ſword. The ſaid Captain after he had ſhewed the Maſter Tower-hill play, took him by one of his ears, pulled his head down to the gunnel, and ſwore he would cut his ears off; called to the Carpenter to bring him mallet and chiſſel, which the Carpenter did, and the ſaid Captain bid the Carpenter ſtrike; to which the ſaid Carpenter anſwered and ſaid, Noble Captain, I have obeyed your commands in bringing the mallet and chiſſel, but I dare not cut a man's ears off: ſo the poor Maſter eſcaped with his ears. The ſaid Captain not being ſatisfied with the barbarity exerciſed over the Maſter, calls for his Mate, viz. John White,

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and when he appeared fell upon him with his cane, beat him over his head and arms till the ferrel flew off and the cane ſhivered in pieces, till the poor man lay ſenſeleſs in the ſcuppers. The Captain had a Monkey on board, who ſeeing the Captain in a paſſion, fell alſo upon the poor Mate, and bit and gnawed thirty or forty holes about his head and neck, the Captain ſtanding over laughing all the time. This did not ſuffice, but the Mate was put into the bilboes, when he had recovered his ſenſes, for ſome days; then put on board the *** Man of War, which was Guard-ſhip of the Buoy of the Nore, ſtapled down upon his breech a-top of the fore-caſtle, and the commanding Officer would not ſuffer ſo much as a tarpauling, nor any thing to be caſt over him to keep the weather off him day or night; and thus this poor man was confined for about ten days: I was informed that they would not ſuffer him to riſe out of this poſture to eaſe nature, but he did it as he ſat, till he was almoſt dead. Now I ſhall leave the poor Mate and return to the Maſter, who coming to London after he had reported his Ship at the Cuſtom-houſe, and going down to his Ship, was arreſted by a *** Writ, and hurried to the Marſhalſea-priſon without bail; the Mate being ſent for, and two of the ſaid Maſter's apprentices who were taken by the Pinnace's crew, were put into the ſaid priſon, and laid there ſix or eight months, at laſt were bailed with much to do; and no Indictment being preferred againſt them,

the recognizance was discharged: after which the Captain was ordered to Carolina; and upon his return was prosecuted by the Mate for an assault and battery; the Jury brought in their verdict for the Prosecutor 100l. and costs, which the Captain thought was hard, and desired a re-hearing, which was granted him, he first paying the Prosecutor's costs, which was about 71l. It was heard a second time; and I well remember upon the Jury bringing in their verdict for the Prosecutor 100l. damages and costs, the Judge said, "Gentlemen of the Jury, I think you have "brought in a just verdict." After which, the Master of the Ship brought his action against the said Captain, and recovered 100l. damages and costs of suit; but being so long in prison, his Ship lying by the walls all the time, it was a means of his and his Family's ruin; as also the poor Mate's, who has been disordered ever since, and falling into fits by the cruelty he met with, which he never could recover.

N. B. We have left out the names and some aggravating circumstances, that we shall be ready to insert at length if any person thinks himself aggrieved by this relation.

